



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 34887916

Date: JAN. 14, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (H-1B)

The Petitioner seeks to temporarily employ the Beneficiary under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(B), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to temporarily employ a qualified foreign worker in a position that requires both (a) the theoretical and practical application of a body of highly specialized knowledge and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum for entry into the position.

The Director of the California Service Center denied the petition, concluding that the record did not establish that the Petitioner's job proffered job qualifies as a specialty occupation. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Section 214(i)(1) of the Act, 8 U.S.C. § 1184(i)(1), defines the term "specialty occupation" as an occupation that requires "theoretical and practical application of a body of highly specialized knowledge, and attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum for entry into the occupation in the United States." The regulation at 8 C.F.R. § 214.2(h)(4)(ii) largely restates section 214(i)(1) of the Act but adds a non-exhaustive list of fields of endeavor. In addition, 8 C.F.R. § 214.2(h)(4)(iii)(A) provides that the proffered position must meet one of four criteria to qualify as a specialty occupation position:

- (1) A baccalaureate or higher degree or its equivalent is normally the minimum requirement for entry into the particular position;
- (2) The degree requirement is common to the industry in parallel positions among similar organizations or, in the alternative, an employer may show that its

particular position is so complex or unique that it can be performed only by an individual with a degree;

- (3) The employer normally requires a degree or its equivalent for the position; or
- (4) The nature of the specific duties [is] so specialized and complex that knowledge required to perform the duties is usually associated with the attainment of a baccalaureate or higher degree.

We construe the term “degree” to mean not just any baccalaureate or higher degree, but one in a specific specialty that is directly related to the proposed position. *See Royal Siam Corp. v. Chertoff*, 484 F.3d 139, 147 (1st Cir. 2007) (describing “a degree requirement in a specific specialty” as “one that relates directly to the duties and responsibilities of a particular position”). Lastly, 8 C.F.R. § 214.2(h)(4)(i)(A)(1) states that an H-1B classification may be granted to a foreign national who “*will perform services in a specialty occupation . . .*” (emphasis added).

By regulation, the Director is charged with determining whether the petition involves a specialty occupation as defined in section 214(i)(1) of the Act. 8 C.F.R. § 214.2(h)(4)(i)(B)(2). The Director may request additional evidence in the course of making this determination. 8 C.F.R. § 103.2(b)(8). In addition, a petitioner must establish eligibility at the time of filing the petition and must continue to be eligible through adjudication. 8 C.F.R. § 103.2(b)(1).

II. ANALYSIS

The Petitioner seeks to employ the Beneficiary as a “direct support professional.” It submitted a labor condition application (LCA) certified for a position in the occupational category of “rehabilitation counselors,” standard occupational classification (SOC) code 21-1015.00. The Petitioner stated the position requires a bachelor’s degree in psychology, sociology, social work, education, or a closely related human services field. The Director denied the petition, concluding that because the position’s degree requirement is for a bachelor’s degree in disparate fields of study, the position does not require a degree in a “specific specialty” or its equivalent, and therefore does not meet the statutory or regulatory definitions of a specialty occupation. The Director also analyzed the evidence in the record as to each of the four criteria at 8 C.F.R. § 214.2(h)(4)(iii)(A) and determined that the evidence did not establish that the position qualifies as a specialty occupation under any of the four criteria.

On appeal, the Petitioner contends that the proffered position is a specialty occupation. Primarily, the Petitioner repeats the same claims presented to the Director in response to the request for evidence (RFE) and does not directly address several of the specific deficiencies identified by the Director in the decision. For example, the Director concluded that the Petitioner materially changed its description of the job duties in response to the RFE. However, the Petitioner does not address this finding by the Director or provide any clarification regarding the altered job duties submitted in response to the RFE. For the reasons discussed below, we agree with the Director that the record does not establish that the proffered position is for a specialty occupation as defined in section 214(i)(1)(B) of the Act and 8 C.F.R. § 214.2(h)(4)(ii).

The Petitioner claims, among other things, that the position qualifies under the criterion at 8 C.F.R. § 214.2(h)(4)(iii)(A)(1) because this criterion should not be interpreted so narrowly as to require there to be a single degree program for entry into the occupation and because each of the fields in its degree requirement can prepare an individual for entry into the occupation. The Petitioner also asserts the *Handbook* recognizes that some employers accept a bachelor's degree for the occupation and that the U.S. Department of Labor's Occupational Information Network (O*NET) supports a bachelor's degree requirement for the position.¹

While we agree that there is no requirement in the statute for the required education to consist of one specific degree or major, there must be a close relation between the required specialized studies to constitute a common "specialty" or each "specialty" must be directly related to the duties of the position as supported by the case law cited by the Petitioner in its appeal. When a petitioner would accept a bachelor's degree from a wide variety of seemingly unconnected fields, it cannot establish that the fields constitute a "specialty" if it does not establish how each accepted and specific field of study is directly related to the duties and responsibilities of the proffered position. We interpret the statutory "the" and the regulatory "a" to mean a singular specialty. But we do not so narrowly interpret the statute and regulation such that multiple closely related fields of study would not constitute a specialty to perform the duties of a related specialty occupation. In general, a minimum of a bachelor's or higher degree in more than one specialty is recognized as satisfying the "degree in the specific specialty (or its equivalent)" requirement of section 214(i)(1)(B) of the Act provided the specialties are closely related such that they constitute a common specialty required to perform the duties of the position. If they constitute a common specialty, then the required "body of highly specialized knowledge" would essentially be the same. If the required degree fields do not constitute a common specialty, a minimum entry requirement of a degree in disparate fields would not meet the statutory requirement that the degree be "in the specific specialty (or its equivalent)" unless the Petitioner establishes how each field is directly related to the duties of the position.

The Petitioner also submitted several advertisements from purportedly parallel positions at supposedly similar organization to support its assertion that its proffered position qualifies as a specialty occupation under 8 C.F.R. § 214.2(h)(4)(iii)(A)(2). However, the advertisements describe a constellation of minimum requirements in a variety of educational disciplines, including criminal justice, religion, and the seeming catchall "human services" field. As noted by the Director in their decision, the record also contains a list of "approved human services degrees" submitted in response to the RFE. The list includes diverse fields such as anthropology, criminal justice, nutrition, and divinity/religion/theology. As noted above, 8 C.F.R. § 214.2(h)(4)(iii)(A) must be read in context with the statutory and regulatory definitions of a specialty occupation under section 214(i)(1) of the Act and 8 C.F.R. § 214.2(h)(4)(ii). Therefore, we construe the term "degree" as used 8 C.F.R. § 214.2(h)(4)(iii)(A) to mean not just any bachelor's or higher degree, but one in a specific specialty that is directly related to the proposed position. The submitted job advertisements do not support the Petitioner's assertion that a specialized degree requirement is common to the industry in parallel positions among similar organizations.

¹ See National Center for O*NET Development, O*NET OnLine Summary Report for 21-1015.00 – Rehabilitation Counselors, www.onetonline.org/link/summary/21-1015/00.

The Petitioner also repeats its claim that it has demonstrated eligibility under 8 C.F.R. § 214.2(h)(4)(iii)(A)(3) because it has submitted educational credentials for individuals who it states are in similar positions within the organization. However, the Petitioner did not provide documentary evidence that it employs the referenced individuals in the proffered position. The Petitioner provided diplomas, transcripts, and job offer letters. But the Petitioner did not provide employment records, paystubs, or other evidence that it actually employs the individuals named on the diplomas and transcripts to establish that it normally requires a degree or its equivalent for the position. 8 C.F.R. § 214.2(h)(4)(iii)(A)(3).

Finally, the Petitioner discusses on appeal the U.S. Supreme Court's recent decision in *Loper Bright Enterprises v. Raimondo*, 144 S. Ct. 2244 (2024). The Petitioner notes that the decision overturned the longstanding doctrine of *Chevron* deference and asserts that the end of this doctrine makes it easier for U.S. employers to challenge USCIS decisions. However, the Petitioner does not explain how the Court's decision in *Loper Bright Enterprises* establishes any error in the Director's decision, nor how it relates to our review of the decision. As noted above, we conduct a de novo review the decision. *Matter of Christo's, Inc.*, 26 I&N Dec. at 537 n.2. The Petitioner has not explained how the framework that governs a federal courts' review of administrative decisions or agency actions is applicable to our review of this matter.

For the reasons discussed above, the Petitioner has not overcome the basis for the Director's denial, it has not established that the proffered position meets the statutory or regulatory definitions of a specialty occupation, and it has not demonstrated that the position satisfies any of the criteria at 8 C.F.R. § 214.2(h)(4)(iii)(A).

III. CONCLUSION

In visa petition proceedings, it is a petitioner's burden to establish eligibility for the immigration benefit sought. Upon review of the record, we conclude that the Petitioner has not established that the proffered position is a specialty occupation. The petition will remain denied.

ORDER: The appeal is dismissed.